



CHAPTER 7.

An Act to authorise further increases under, and otherwise amend, the Pensions (Increase) Act, 1944, and to continue that Act in force as amended; to authorise further increases under the Pensions (Increase) Act, 1920; and to authorise increases in pensions to which that Act does not apply.

[18th February 1947.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The limit specified in the proviso to subsection (1) of section one of the Pensions (Increase) Act, 1944 (hereafter in this Act referred to as "the principal Act"), under which an increase of pension is not to be made under that section where the income of the pensioner exceeds the said limit, and in paragraph 4 of the Second Schedule to the principal Act, which restricts any such increase to the amount required to raise the income of the pensioner to the said limit, shall be increased as follows, that is to say,—

- (a) in the case of a pensioner who is married or has at least one dependant, from three hundred pounds a year to four hundred and fifty pounds a year;
- (b) in the case of any other pensioner, from two hundred and twenty-five pounds a year to three hundred and fifty pounds a year.

(2) For paragraphs 2 and 3 of the said Second Schedule (which specify the amounts of the increases in pensions authorised under the said section one) there shall be substituted the following paragraphs:—

“ 2. Where a pensioner is married or has at least one dependant, then, subject to the provisions of this Schedule:—

(a) if the pension does not exceed one hundred pounds a year, the authorised increase shall be forty per cent. of the amount of the pension:

(b) if the pension exceeds one hundred pounds a year but does not exceed one hundred and thirty-three pounds six shillings and eightpence a year, the authorised increase shall be the amount of forty pounds a year:

(c) if the pension exceeds one hundred and thirty-three pounds six shillings and eightpence a year but does not exceed two hundred pounds a year, the authorised increase shall be thirty per cent. of the amount of the pension:

(d) if the pension exceeds two hundred pounds a year but does not exceed three hundred and ninety pounds a year, the authorised increase shall be the amount of sixty pounds a year: and

(e) if the pension exceeds three hundred and ninety pounds a year, the authorised increase shall be the amount which is necessary to increase the pension to four hundred and fifty pounds a year.

3. Where a pensioner is unmarried and has no dependants then, subject to the provisions of this Schedule:—

(a) if the pension does not exceed seventy-five pounds a year, the authorised increase shall be forty per cent. of the amount of the pension:

(b) if the pension exceeds seventy-five pounds a year but does not exceed one hundred pounds a year, the authorised increase shall be the amount of thirty pounds a year:

(c) if the pension exceeds one hundred pounds a year but does not exceed one hundred and fifty pounds a year, the authorised increase shall be thirty per cent. of the amount of the pension:

(d) if the pension exceeds one hundred and fifty pounds a year but does not exceed three hundred and five pounds a year, the authorised increase shall be the amount of forty-five pounds a year:

(e) if the pension exceeds three hundred and five pounds a year, the authorised increase shall be the amount which is necessary to increase the pension to three hundred and fifty pounds a year.”

(3) For paragraph (c) of subsection (1) of section two of the principal Act (which provides that where a pension payable under the Superannuation Acts exceeds six hundred pounds a year but is less than six hundred and forty-five pounds a year the pension may be increased to six hundred and forty-five pounds a year) there shall be substituted the following paragraphs:—

“(c) where the pension exceeds six hundred pounds a year but does not exceed seven hundred and fifty pounds a year, by five per cent.:

(d) where the pension exceeds seven hundred and fifty pounds a year but is less than seven hundred and eighty-seven pounds ten shillings a year, to seven hundred and eighty-seven pounds ten shillings a year.”

(4) The foregoing provisions of this section shall apply to any instalment of an increase of pension payable under the principal Act in respect of any period beginning on or after the first day of December, nineteen hundred and forty-six, irrespective of the date at which an increase of the pension was first granted under the principal Act; and any payment of such an instalment made before the passing of this Act shall be adjusted accordingly.

2.—(1) Nothing in subsection (7) of section one of the principal Act (which requires a pensions authority to make increases of certain pensions) shall prevent a pensions authority making such reduction in the amount of any increase payable under the said section one to a pensioner as may be necessary to secure, where the pensioner is in receipt of a non-contributory pension under the Old Age Pensions Act, 1936, that he shall receive the greatest possible amount in respect of the increase and the non-contributory pension taken together.

Minor
amendments
of principal
Act.

26 Geo. 5 &
1 Edw. 8. c. 31.

(2) In calculating the income of a pensioner for the purposes of section one of the principal Act and the Second Schedule thereto the amount of any service pension (as defined in that Schedule) shall be taken into account, and accordingly in paragraph (a) of subsection (1) of section three of the principal Act (which provides for disregarding the first fifty-two pounds a year of income otherwise than in respect of a pension specified in the First Schedule to the principal Act) after the word “Act” there shall be inserted the words “or a service pension as defined in the Second Schedule thereto”.

(3) Nothing in subsection (1) of section five of the principal Act (which provides that expenditure in respect of certain increases shall be defrayed out of moneys provided by Parliament) shall affect the operation, in relation to increases of pensions under the principal Act, of the provisions of section fourteen of the Police Act, 1890, and section ten of the Police

53 & 54 Vict.
c. 45.

11 & 12 Geo. 5. Pensions Act, 1921, as to the payment of pensions partly out of the police fund and partly out of moneys provided by Parliament.
c. 31.

(4) Where a person is in receipt of any pension not specified in the First Schedule to the principal Act, and an increase of the pension is payable under any scheme (wherever in force and whether or not authorised by or under any enactment), being a scheme determined by the Treasury for the purposes of this subsection to be similar to the provisions of the principal Act, then for the purposes of any increase of a pension specified in the First Schedule to the principal Act authorised by section one of that Act the provisions of that Act shall apply in relation to the said person as if the first-mentioned pension were a pension specified in that Schedule of an amount equal to so much thereof as does not consist of any increase made under the said scheme, and as if that increase were an increase thereof authorised as aforesaid.

Continuance in
force of
principal Act.

3.—(1) The principal Act, as amended by the foregoing provisions of this Act, shall subject to the provisions of this section continue in force notwithstanding anything in subsection (5) of section eight or subsection (2) of section ten of the principal Act as to the expiry thereof; and accordingly the said subsections are hereby repealed.

(2) Where the amount of a pension is determined by reference to a rate of emoluments received on or after the first day of April, nineteen hundred and forty-seven, or by reference to an average rate of emoluments received over a period of service beginning on or after the first day of April, nineteen hundred and forty-six, no increase of the pension shall be payable under the principal Act.

(3) Where the amount of a pension is determined by reference to an average rate of emoluments received over a period of service (in this subsection referred to as "the relevant service") part of which was served before the last mentioned date—

- (a) for the purposes of calculating the amount of any increase under the principal Act the pension shall be deemed to be of the like amount as the pension which could have been granted if it had fallen to be determined by reference to the average rate of emoluments received over so many years of the relevant service as were begun before the first day of April, nineteen hundred and forty-six;
- (b) the amount of the increase which could be granted apart from this paragraph shall be reduced in the proportion which the relevant service less the years begun as aforesaid bears to the whole of the relevant service.

4.—(1) The limits of one hundred and fifty pounds and two hundred pounds specified in paragraph (3) of section two of the Pensions (Increase) Act, 1920 (which makes it a condition for the increase of a pension under that Act that the means of the pensioner are less than one hundred and fifty pounds a year if unmarried, or two hundred pounds a year if married) and in proviso (ii) to paragraph 1 of the Schedule to that Act (under which no pension may be increased by an amount greater than is sufficient to bring the means of the pensioner up to the said limits) shall be increased to two hundred pounds and two hundred and seventy-five pounds respectively.

Increase of
limits of
income under
Act of 1920.
10 & 11 Geo. 6.
c. 36.

(2) In proviso (i) to paragraph 1 of the First Schedule to the said Act of 1920 (which provides that if the amount to which a pension may be increased under the scale set out in that paragraph is less than the amount to which a smaller pension might be increased, it may be increased to the latter amount) after the words "might be increased" there shall be inserted the words "or if a pension greater than such as may be increased under the said scale is less than the amount to which a smaller pension might be increased."

(3) The foregoing provisions of this section shall apply to any instalment of an increase of pension payable under the Pensions (Increase) Acts, 1920 and 1924, in respect of any period beginning on or after the first day of December, nineteen hundred and forty-six, irrespective of the date at which an increase of the pension was first granted; and any payment of such an instalment made before the passing of this Act shall be adjusted accordingly.

(4) This section shall be construed as one with the Pensions (Increase) Acts, 1920 and 1924.

5.—(1) The Treasury may make regulations empowering any person or body of persons specified in the regulations to pay the like increases, of pensions payable by them or in respect of pensions otherwise payable by reference to service with them or to such service and other service, as would be payable if those pensions were pensions specified in the First Schedule to the principal Act.

Payment of
increases
under schemes
not falling
within
principal Act.

(2) Regulations under this section may provide for increases thereby authorised taking effect as from such date after the passing of this Act, but whether before or after the coming into operation of the regulations, as may be specified therein.

(3) Any regulations under this section shall be laid before Parliament immediately after being made, and if either House of Parliament within the period of forty days beginning with the day on which the regulations were laid before it resolves that an Address be presented to His Majesty praying that the

regulations be annulled, no further proceedings shall be taken thereunder after the date of the resolution, and His Majesty may by Order in Council revoke the regulations, so, however, that any such resolution and revocation shall be without prejudice to the validity of anything previously done under the regulations or to the making of new regulations.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

56 & 57 Vict.
c. 66.

(4) Notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, regulations made under subsection (1) of this section shall not be deemed to be statutory rules to which that section applies.

Short title,
construction,
citation and
interpretation.

6.—(1) This Act may be cited as the Pensions (Increase) Act, 1947, and, except in so far as it is directed to be construed with the Pensions (Increase) Acts, 1920 and 1924, shall be construed as one with the principal Act; and that Act and this Act, except as aforesaid, may be cited as the Pensions (Increase) Acts, 1944 and 1947.

(2) References in this Act to any enactment shall be construed, except where the context otherwise requires, as references to that enactment as amended by any other enactment, including this Act.

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